

TAB 12



Board of Education Report

File #: Rep-305-23/24, Version: 1

Authorization to Execute a Term Extension for the Joint Use Agreement with The Los Angeles Neighborhood Land Trust for its Use, Programming and Maintenance of the Garden and Greenhouse at John C. Fremont High School

June 4, 2024

Facilities Services Division

Action Proposed:

Authorize the Chief Facilities Executive and/or her designee to execute a five-year extension of the term of the Joint Use Agreement (JUA) with The Los Angeles Neighborhood Land Trust (LANLT) for its use, programming and maintenance of the garden and greenhouse at John C. Fremont High School (Fremont) located at 7821 South Avalon Boulevard, Los Angeles, CA 90003.

Background:

The Board of Education (Board) approved a community garden and greenhouse project at Fremont in April 2010, to revitalize an agricultural area at Fremont that had been non-operational for more than two decades, as well as authorized staff to negotiate and enter into a JUA for the improvements (Project). The scope of the Project included the construction of a community garden which would consist of landscaping, walking paths, orchards, raised garden beds, benches, storage sheds, community garden area, and a classroom/instructional greenhouse to be used by the students of Fremont and the residents of the surrounding neighborhood.

In August 2013, Los Angeles Unified and LANLT executed a JUA for the use, programming and maintenance of the garden and greenhouse. LANLT provided \$239,000 in funding towards the development of the Project, and continues to provide educational programming, job training opportunities, and access to healthy food for students and community members. Additionally, LANLT, at its cost, is responsible for performing on-going maintenance to keep the garden and greenhouse in a safe, clean condition, and good working order, as part of its obligation under the JUA. During the term of the JUA, LANLT's use of the garden and greenhouse has not interfered with the educational program or activities at Fremont, unduly disrupted the residents in the surrounding neighborhood, or jeopardized the safety of the students.

The initial term of the JUA was for a period of five years and included two options to extend the term for periods of five years each (each an Option Term). In June 2018, the Board authorized a term extension for the JUA, and subsequently Los Angeles Unified and LANLT exercised the initial Option Term, which extended the term of the JUA for a period of five years commencing on August 23, 2018. Although the initial Option Term extended the JUA until August 22, 2023, the JUA was suspended during the COVID-19 pandemic. The JUA was subsequently reinstated and extended commensurate with the number of days it had been suspended. As a result, the current term of the JUA expires on July 26, 2024. LANLT has provided Los Angeles Unified with written notice of its intention to exercise its second Option Term to extend the JUA for an additional five years. If extended, the term of the JUA will expire on July 25, 2029.

The relationship between Los Angeles Unified and LANLT continues to benefit Los Angeles Unified students and the community at large by providing credit-approved classes in the greenhouse and garden, a Gardening

Apprenticeship Program, and an after-school food justice and civic engagement program supported by Fremont staff and a LANLT Garden and Youth Programs Manager. In addition to peer-to-peer education activities, students prepare healthy recipes together, participate in workshops and field trips to regional farms and open spaces. Students and the community are introduced to the basic principles of small acreage food production, plant physiology, composting and plant nutrition and planting techniques, among others.

Fremont is located within the boundaries of Region South and Board District 7 (Tanya Ortiz Franklin).

Expected Outcomes:

Adoption of the proposed action will enable staff to execute the extension of the term of the JUA, allow LANLT to continue to operate and maintain the garden and greenhouse and provide garden programs to students and the community. LANLT will continue to partner with other organizations, to distribute fresh produce and provide healthy food education programs to the students of Fremont and the community.

Board Options and Consequences:

Adoption of the recommendation to extend the term of the JUA will permit Los Angeles Unified to execute the extension of the term of the JUA. The students will continue to benefit from the joint programs provided in the garden and the community will continue to be able to access the garden during after-school hours and on the weekends.

If not adopted, the JUA will terminate on July 26, 2024, and LANLT will not be able to continue to provide educational programs to Fremont students and the community in the garden and greenhouse. Valuable programs, including the community's access to the garden will be discontinued. Additionally, the Garden and Youth Programs Manager and the Gardening Apprenticeship Program will cease to exist and Los Angeles Unified will be responsible for operation and maintenance of the garden and greenhouse.

Policy Implications:

The proposal furthers implementation of the Board-approved Preserving and Sustaining School Gardens Resolution, supporting the preservation of existing gardens in Los Angeles Unified schools that have instructional programming ties and funding support. Additionally, the proposed action will advance the Los Angeles Unified 2022-2026 Strategic Plan Pillar 2 Joy and Wellness Welcoming Learning Environments by providing access to the garden and greenhouse at Fremont.

Budget Impact:

The activities associated with executing an extension of the JUA requires staff time from the Facilities Services Division and the Office of the General Counsel. LANLT will be responsible for all costs and services associated with its use of the garden and greenhouse, including but not limited to, maintenance, operations, and utilities.

Student Impact:

Approximately 2,020 students from Fremont, as well as members of the community at large, will be able to participate in gardening and healthy food nutrition programs and will benefit from job training opportunities, as well as fresh produce distributed at the garden and greenhouse.

Equity Impact:

LANLT has worked with local partners and residents in the South Los Angeles community of Florence to develop a hub for urban agriculture education, food waste recycling and fresh produce access.

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Issues and Analysis

The JUA will continue to include provisions that require the LANLT, at its sole expense, to provide supervision at all times during LANLT's use. Moreover, LANLT will be responsible for all costs and services associated with its use of the garden and greenhouse, including but not limited to, maintenance, operations, and utilities.

The extension the term of the JUA will be for a period of five years. At the end of the five years, Los Angeles Unified does not have an obligation to extend or renew the JUA. Any future potential use of the garden and greenhouse will be subject to Board approval.

Attachments:

None

Informatives:

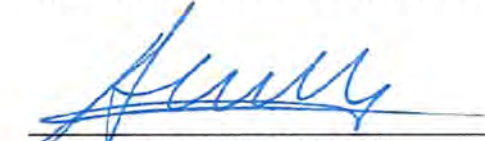
None

Submitted:

05/07/24

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RESPECTFULLY SUBMITTED,



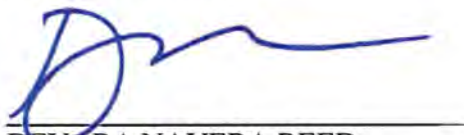
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Superintendent

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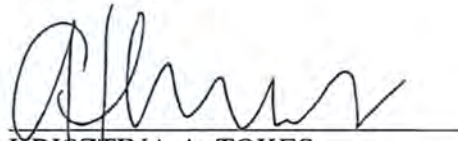
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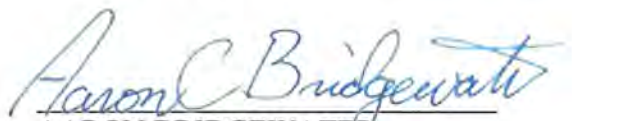
✓ Approved as to form.

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✓ Approved as to budget impact statement.